COMMERCIAL AGREEMENT - RECORD 011

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-011

1. Recitals and defined terms

This Master Subscription Agreement is made between Helioscope Robotics, Inc. as Provider and Keystone Parcel Network Inc. as Customer, a parcel sortation business organised in Pennsylvania, contracting through Keystone Parcel Network Inc.. Keystone and the Provider have agreed that terms defined in the recitals and in Schedule 2 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

On the terms of Exhibit D, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As a remedy, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Keystone runs 8 sites from Pennsylvania in parcel sortation, so the Master Subscription Agreement is administered locally and this clause is applied per site. Keystone has taken the point up once since signature; the correspondence is filed against Article 2 (Definitions) and did not result in an amendment.

Nothing in Exhibit D entitles Keystone to assume that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Tighter here than standard: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 8 sites, Keystone applies the Master Subscription Agreement at the point of delivery, as parcel sortation practice requires. The Keystone file records the position as at the last amendment, and Article 14 (Indemnities) is the reference a reviewer should cite when raising it.

Neither Keystone nor the Provider may treat Article 16 (Term and Termination) as permitting the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 8 sites, Keystone applies the Master Subscription Agreement at the point of delivery, as parcel sortation practice requires. For a customer of Keystone's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Keystone pays the fees under Exhibit A in consideration of the Provider's undertaking that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Materially, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Master Subscription Agreement reaches each of Keystone's 8 sites separately, which is how a parcel sortation operator in Pennsylvania administers it. Because Keystone operates in parcel sortation, the practical burden of this clause falls on its Pennsylvania operation, and Article 3 (Scope of Supply) governs how it is measured.

Keystone subscription agreement - Schedule 5 - Notices, Periods and Addressees

Keystone notice type	Subject	Period	Addressee	Method	Deemed given
KEY-N001	service credit claim	65 days	Contracts Manager	courier and email	on the second business day after despatch
KEY-N002	termination for cause	35 days	Chief Operating Officer	email with acknowledgement	on receipt
KEY-N003	change of control	35 days	General Counsel	email with acknowledgement	on receipt
KEY-N004	change of control	10 days	General Counsel	courier only	on the second business day after despatch
KEY-N005	breach	55 days	designated account executive	email with acknowledgement	on receipt
KEY-N006	termination for cause	10 days	Chief Operating Officer	portal notice	on despatch
KEY-N007	assignment request	65 days	Contracts Manager	courier and email	on receipt
KEY-N008	change of control	70 days	General Counsel	email with	on receipt

Keystone notice type	Subject	Period	Addressee	Method	Deemed given
				acknowledgement	
KEY-N009	service credit claim	20 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
KEY-N010	service credit claim	40 days	Chief Operating Officer	portal notice	on receipt
KEY-N011	renewal election	35 days	General Counsel	courier and email	on the second business day after despatch
KEY-N012	force majeure	55 days	General Counsel	courier and email	on receipt
KEY-N013	force majeure	25 days	Contracts Manager	courier only	on receipt
KEY-N014	change of control	75 days	designated account executive	courier and email	on despatch
KEY-N015	termination for cause	45 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
KEY-N016	service credit claim	65 days	Chief Operating Officer	courier only	on the second business day after despatch
KEY-N017	non-renewal	30 days	General Counsel	courier and email	on the second business day after despatch
KEY-N018	force majeure	70 days	designated account executive	courier only	on despatch
KEY-N019	non-renewal	80 days	designated account executive	courier only	on the second business day after despatch
KEY-N020	renewal election	55 days	Chief Operating Officer	portal notice	on receipt
KEY-N021	breach	85 days	Chief Operating Officer	portal notice	on the second business day after despatch
KEY-N022	non-renewal	65 days	General Counsel	email with acknowledgement	on the second business day after despatch
KEY-N023	force majeure	30 days	General Counsel	portal notice	on despatch
KEY-N024	breach	35 days	designated account executive	portal notice	on the second business day after despatch
KEY-N025	breach	15 days	General Counsel	portal notice	on despatch
KEY-N026	price adjustment	55 days	Chief Operating Officer	courier and email	on receipt
KEY-N027	non-renewal	45 days	Contracts Manager	courier and email	on despatch
KEY-N028	service credit claim	40 days	Contracts Manager	portal notice	on despatch
KEY-N029	price adjustment	45 days	Chief Operating Officer	email with acknowledgement	on despatch
KEY-N030	non-renewal	50 days	designated account executive	portal notice	on the second business day after despatch
KEY-N031	price adjustment	5 days	Chief Operating Officer	courier only	on receipt
KEY-N032	renewal election	75 days	designated account executive	email with acknowledgement	on receipt
KEY-N033	assignment request	80 days	Chief Operating Officer	courier only	on despatch
KEY-N034	price adjustment	60 days	General Counsel	courier and email	on the second business day after despatch
KEY-N035	assignment request	65 days	designated account executive	email with acknowledgement	on receipt
KEY-N036	renewal election	45 days	designated account executive	courier and email	on despatch
KEY-N037	service credit claim	90 days	Chief Operating Officer	email with acknowledgement	on despatch
KEY-N038	non-renewal	25 days	Chief Operating Officer	portal notice	on receipt
KEY-N039	force majeure	20 days	Contracts Manager	courier only	on receipt
KEY-N040	breach	5 days	Chief Operating Officer	courier only	on despatch
KEY-N041	assignment request	25 days	General Counsel	email with	on the second

Keystone notice type	Subject	Period	Addressee	Method	Deemed given
				acknowledgement	business day after despatch
KEY-N042	termination for cause	75 days	designated account executive	email with acknowledgement	on receipt
KEY-N043	non-renewal	15 days	Contracts Manager	courier only	on despatch
KEY-N044	service credit claim	25 days	Contracts Manager	courier and email	on the second business day after despatch
KEY-N045	breach	30 days	designated account executive	portal notice	on the second business day after despatch
KEY-N046	force majeure	10 days	Contracts Manager	courier and email	on receipt
KEY-N047	force majeure	75 days	General Counsel	email with acknowledgement	on despatch
KEY-N048	breach	50 days	Chief Operating Officer	courier only	on receipt
KEY-N049	force majeure	75 days	Contracts Manager	courier and email	on receipt
KEY-N050	breach	45 days	Contracts Manager	portal notice	on receipt
KEY-N051	renewal election	65 days	General Counsel	courier only	on receipt
KEY-N052	breach	85 days	General Counsel	portal notice	on the second business day after despatch
KEY-N053	price adjustment	10 days	Contracts Manager	courier only	on despatch
KEY-N054	change of control	20 days	General Counsel	courier only	on the second business day after despatch
KEY-N055	price adjustment	75 days	General Counsel	email with acknowledgement	on the second business day after despatch
KEY-N056	change of control	35 days	Contracts Manager	courier and email	on the second business day after despatch
KEY-N057	force majeure	55 days	Chief Operating Officer	email with acknowledgement	on receipt
KEY-N058	termination for cause	30 days	General Counsel	portal notice	on the second business day after despatch
KEY-N059	assignment request	55 days	General Counsel	courier only	on despatch
KEY-N060	termination for cause	40 days	General Counsel	courier only	on the second business day after despatch
KEY-N061	non-renewal	15 days	designated account executive	courier and email	on the second business day after despatch
KEY-N062	price adjustment	55 days	General Counsel	portal notice	on the second business day after despatch
KEY-N063	non-renewal	45 days	Contracts Manager	portal notice	on the second business day after despatch
KEY-N064	service credit claim	55 days	Chief Operating Officer	courier and email	on the second business day after despatch
KEY-N065	breach	75 days	Contracts Manager	email with acknowledgement	on receipt
KEY-N066	breach	65 days	Contracts Manager	courier only	on receipt
KEY-N067	service credit claim	80 days	Chief Operating Officer	courier and email	on receipt
KEY-N068	assignment request	90 days	Chief Operating Officer	email with acknowledgement	on receipt
KEY-N069	change of control	85 days	Chief Operating Officer	email with acknowledgement	on receipt
KEY-N070	force majeure	15 days	designated account executive	courier and email	on the second business day after despatch
KEY-N071	termination for cause	85 days	Contracts Manager	portal notice	on despatch
KEY-N072	price adjustment	75 days	General Counsel	email with acknowledgement	on despatch
KEY-N073	breach	25 days	Chief Operating Officer	courier and email	on despatch

Keystone notice type	Subject	Period	Addressee	Method	Deemed given
KEY-N074	assignment request	40 days	Contracts Manager	courier only	on receipt
KEY-N075	renewal election	10 days	Chief Operating Officer	courier and email	on receipt
KEY-N076	assignment request	60 days	Chief Operating Officer	courier and email	on receipt
KEY-N077	assignment request	5 days	Chief Operating Officer	portal notice	on the second business day after despatch
KEY-N078	breach	85 days	designated account executive	email with acknowledgement	on the second business day after despatch

2. Scope of supply and orders

Nothing in Schedule 3 entitles Keystone to assume that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As to enforcement, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Keystone treats the obligation as a site-level matter across its 8 sites in Pennsylvania, consistent with the Master Subscription Agreement. Keystone has taken the point up once since signature; the correspondence is filed against Article 19 (Confidentiality) and did not result in an amendment.

Keystone has agreed, and the Provider has accepted, that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Practically, performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Master Subscription Agreement reaches each of Keystone's 8 sites separately, which is how a parcel sortation operator in Pennsylvania administers it. For a customer of Keystone's size the clause is unremarkable, but Article 13 (Licences) is drafted more tightly here than in the Provider's standard form.

Keystone acknowledges that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As between them, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. Notices under Article 19 (Confidentiality) go to the contracting entity named in the recital and not to any Keystone affiliate that may operate a site.

Save as Exhibit D otherwise provides, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Deliberately so: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Keystone treats the obligation as a site-level matter across its 8 sites in Pennsylvania, consistent with the Master Subscription Agreement. Notices under Article 13 (Licences) go to the contracting entity named in the recital and not to any Keystone affiliate that may operate a site.

3. Delivery, title and risk

Article 17 (Transition Assistance) of the Master Subscription Agreement is to be construed so that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In effect, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 8 sites in Pennsylvania means Keystone applies the Master Subscription Agreement through its regional operations team rather than through head office. Nothing in the Keystone negotiation history qualifies Article 11 (Data and Telemetry), and a reviewer should not read the pre-signature drafts as doing so.

Keystone retains the right, notwithstanding Article 3 (Scope of Supply), to require that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In effect, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. For Keystone, a parcel sortation operator running 8 sites out of Pennsylvania, the point matters because the Master Subscription Agreement is administered site by site. Keystone has taken the point up once since signature; the correspondence is filed against Article 15 (Limitation of Liability) and did not result in an amendment.

Keystone Parcel Network Inc. has notified the Provider that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As a remedy, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Keystone's 8 sites, since a parcel sortation operator administers the Master Subscription Agreement where the units work. The obligation as it applies to Keystone was tightened at signature, and Article 6 (Fees and Payment) carries the negotiated wording rather than the standard wording.

For the purposes of the Master Subscription Agreement, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Materially, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. Because Keystone operates in parcel sortation, the practical burden of this clause falls on its Pennsylvania operation, and Article 15 (Limitation of Liability) governs how it is measured.

Keystone subscription agreement - Exhibit A - Fee Schedule and Annual Escalator

Keystone fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
KEY-F001	lift attachment	24	$7,583	$181,992	4.4%	on renewal only
KEY-F002	AMR-400 heavy unit	25	$2,051	$51,275	4.4%	on renewal only
KEY-F003	safety scanner kit	30	$7,920	$237,600	2.8%	not escalated
KEY-F004	lift attachment	6	$6,758	$40,548	2.8%	on renewal only
KEY-F005	fleet controller	23	$5,225	$120,175	4.5%	on renewal only
KEY-F006	gateway appliance	10	$7,059	$70,590	2.6%	annually on the anniversary
KEY-F007	gateway appliance	2	$3,213	$6,426	3.2%	not escalated
KEY-F008	AMR-200 mobile unit	7	$7,722	$54,054	5.8%	annually each January
KEY-F009	lift attachment	26	$6,210	$161,460	3.7%	annually on the anniversary
KEY-F010	lift attachment	16	$9,619	$153,904	4.8%	not escalated
KEY-F011	fleet controller	39	$6,517	$254,163	3.3%	on renewal only
KEY-F012	tote carrier	3	$3,305	$9,915	5.4%	not escalated
KEY-F013	charge dock	41	$8,789	$360,349	5.4%	not escalated
KEY-F014	gateway appliance	19	$8,049	$152,931	2.4%	annually each January
KEY-F015	AMR-200 mobile unit	17	$3,867	$65,739	4.2%	annually on the anniversary
KEY-F016	AMR-200 mobile unit	6	$7,915	$47,490	5.6%	annually on the anniversary
KEY-F017	lift attachment	4	$4,575	$18,300	2.4%	annually each January
KEY-F018	fleet controller	5	$9,518	$47,590	3.8%	annually each January
KEY-F019	fleet controller	8	$4,232	$33,856	4.2%	annually each January
KEY-F020	AMR-200 mobile unit	26	$8,752	$227,552	5.6%	annually on the anniversary
KEY-F021	safety scanner kit	24	$9,648	$231,552	3.7%	not escalated
KEY-F022	fleet controller	6	$2,926	$17,556	5.3%	not escalated
KEY-F023	fleet controller	9	$2,412	$21,708	5.2%	not escalated
KEY-F024	safety scanner kit	12	$4,653	$55,836	4.7%	annually each January
KEY-F025	AMR-200 mobile unit	15	$4,445	$66,675	2.4%	not escalated
KEY-F026	charge dock	11	$5,888	$64,768	5.3%	annually each January
KEY-F027	AMR-200 mobile unit	20	$5,074	$101,480	2.2%	on renewal only
KEY-F028	AMR-200 mobile unit	5	$9,197	$45,985	5.7%	annually on the anniversary
KEY-F029	charge dock	6	$5,766	$34,596	5.5%	not escalated
KEY-F030	safety scanner kit	14	$8,987	$125,818	4.5%	annually on the anniversary
KEY-F031	tote carrier	41	$8,009	$328,369	3.5%	on renewal only

Keystone fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
KEY-F032	AMR-400 heavy unit	24	$4,266	$102,384	3.0%	on renewal only
KEY-F033	AMR-400 heavy unit	13	$2,552	$33,176	5.3%	annually on the anniversary
KEY-F034	charge dock	26	$5,746	$149,396	2.6%	annually on the anniversary
KEY-F035	lift attachment	33	$4,456	$147,048	4.3%	annually on the anniversary
KEY-F036	tote carrier	28	$5,335	$149,380	4.8%	annually each January
KEY-F037	gateway appliance	7	$2,016	$14,112	4.5%	not escalated
KEY-F038	lift attachment	40	$7,353	$294,120	4.2%	annually each January
KEY-F039	AMR-400 heavy unit	36	$1,971	$70,956	4.8%	not escalated
KEY-F040	tote carrier	4	$4,007	$16,028	4.6%	annually each January
KEY-F041	AMR-400 heavy unit	25	$9,014	$225,350	2.6%	annually each January
KEY-F042	tote carrier	20	$6,739	$134,780	5.2%	not escalated
KEY-F043	fleet controller	21	$1,578	$33,138	5.5%	not escalated
KEY-F044	AMR-200 mobile unit	39	$9,465	$369,135	4.3%	annually each January
KEY-F045	fleet controller	39	$2,961	$115,479	2.6%	annually each January
KEY-F046	AMR-400 heavy unit	22	$1,802	$39,644	3.3%	on renewal only
KEY-F047	AMR-200 mobile unit	13	$3,176	$41,288	4.8%	on renewal only
KEY-F048	gateway appliance	10	$9,129	$91,290	5.5%	not escalated
KEY-F049	lift attachment	13	$7,729	$100,477	4.8%	annually on the anniversary
KEY-F050	AMR-200 mobile unit	24	$4,815	$115,560	3.7%	annually on the anniversary
KEY-F051	charge dock	22	$5,861	$128,942	5.8%	annually on the anniversary
KEY-F052	AMR-200 mobile unit	19	$1,205	$22,895	5.2%	annually each January
KEY-F053	safety scanner kit	32	$6,992	$223,744	3.7%	annually on the anniversary
KEY-F054	charge dock	16	$2,592	$41,472	5.4%	annually each January
KEY-F055	lift attachment	21	$6,044	$126,924	5.2%	not escalated
KEY-F056	AMR-200 mobile unit	6	$8,846	$53,076	4.7%	not escalated
KEY-F057	charge dock	19	$6,247	$118,693	4.1%	on renewal only
KEY-F058	safety scanner kit	4	$1,816	$7,264	2.2%	on renewal only
KEY-F059	tote carrier	23	$3,670	$84,410	4.7%	not escalated
KEY-F060	AMR-200 mobile unit	17	$2,591	$44,047	2.6%	annually each January
KEY-F061	AMR-400 heavy unit	32	$7,113	$227,616	3.3%	annually each January
KEY-F062	tote carrier	34	$8,644	$293,896	4.5%	on renewal only
KEY-F063	lift attachment	26	$2,872	$74,672	3.4%	annually each January
KEY-F064	safety scanner kit	23	$2,264	$52,072	5.2%	annually each January
KEY-F065	AMR-400 heavy unit	12	$6,374	$76,488	3.6%	annually on the anniversary
KEY-F066	lift attachment	7	$6,771	$47,397	2.3%	not escalated
KEY-F067	charge dock	39	$2,539	$99,021	4.7%	annually each January
KEY-F068	gateway appliance	41	$5,598	$229,518	3.8%	not escalated
KEY-F069	gateway appliance	12	$9,308	$111,696	5.7%	not escalated
KEY-F070	charge dock	24	$9,503	$228,072	2.5%	on renewal only

Keystone fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
KEY-F071	safety scanner kit	29	$6,243	$181,047	5.1%	on renewal only
KEY-F072	AMR-200 mobile unit	28	$3,288	$92,064	5.6%	on renewal only
KEY-F073	safety scanner kit	9	$8,741	$78,669	5.6%	annually on the anniversary
KEY-F074	fleet controller	13	$6,855	$89,115	5.7%	on renewal only
KEY-F075	AMR-400 heavy unit	41	$3,858	$158,178	5.1%	annually each January
KEY-F076	safety scanner kit	29	$3,261	$94,569	2.2%	not escalated
KEY-F077	AMR-400 heavy unit	40	$6,608	$264,320	5.3%	annually on the anniversary
KEY-F078	AMR-200 mobile unit	15	$6,874	$103,110	2.9%	not escalated
KEY-F079	AMR-400 heavy unit	17	$5,600	$95,200	5.9%	not escalated
KEY-F080	tote carrier	20	$2,198	$43,960	2.7%	on renewal only
KEY-F081	tote carrier	26	$6,454	$167,804	4.5%	on renewal only
KEY-F082	fleet controller	39	$6,571	$256,269	3.0%	on renewal only
KEY-F083	tote carrier	39	$3,527	$137,553	3.7%	annually on the anniversary
KEY-F084	safety scanner kit	29	$3,553	$103,037	2.5%	annually each January
KEY-F085	fleet controller	5	$5,370	$26,850	5.6%	on renewal only
KEY-F086	tote carrier	28	$7,302	$204,456	4.1%	on renewal only
KEY-F087	gateway appliance	16	$9,415	$150,640	3.5%	on renewal only
KEY-F088	charge dock	3	$2,903	$8,709	5.8%	on renewal only

4. Fees, invoicing and escalation

Keystone is not obliged, under Schedule 3, to accept that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As between them, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Keystone treats the obligation as a site-level matter across its 8 sites in Pennsylvania, consistent with the Master Subscription Agreement. Notices under Article 21 (Governing Law and Disputes) go to the contracting entity named in the recital and not to any Keystone affiliate that may operate a site.

Keystone and the Provider agree that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the mechanics, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 8 sites, Keystone applies the Master Subscription Agreement at the point of delivery, as parcel sortation practice requires. Nothing in the Keystone negotiation history qualifies Article 12 (Intellectual Property), and a reviewer should not read the pre-signature drafts as doing so.

Article 9 (Customer Obligations) of the Master Subscription Agreement is to be construed so that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the operative wording, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 8 sites in Pennsylvania means Keystone applies the Master Subscription Agreement through its regional operations team rather than through head office. Because Keystone operates in parcel sortation, the practical burden of this clause falls on its Pennsylvania operation, and Article 21 (Governing Law and Disputes) governs how it is measured.

Except as Article 15 (Limitation of Liability) permits, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On timing, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In parcel sortation the burden of this sits with operations, and Keystone discharges it across 8 sites under the Master Subscription Agreement. Administration of this obligation for Keystone sits with the account team rather than with central contracts, and Article 4 (Orders and Quantities) is where it is evidenced.

5. Service levels and credits

Keystone Parcel Network Inc. has notified the Provider that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As a matter of construction, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. The obligation as it applies to Keystone was tightened at signature, and Article 18 (Assignment) carries the negotiated wording rather than the standard wording.

Subject to Article 11 (Data and Telemetry), a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In substance, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Keystone runs 8 sites from Pennsylvania in parcel sortation, so the Master Subscription Agreement is administered locally and this clause is applied per site. Keystone has taken the point up once since signature; the correspondence is filed against Article 16 (Term and Termination) and did not result in an amendment.

On the terms of Schedule 2, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As agreed, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Because Keystone is a Pennsylvania parcel sortation business with 8 sites, the Master Subscription Agreement devolves this to the site manager. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Keystone affiliate that may operate a site.

Keystone retains the right, notwithstanding Article 5 (Delivery and Title), to require that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the mechanics, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Because Keystone is a Pennsylvania parcel sortation business with 8 sites, the Master Subscription Agreement devolves this to the site manager. Notices under Article 8 (Acceptance) go to the contracting entity named in the recital and not to any Keystone affiliate that may operate a site.

6. Acceptance and change control

Keystone is not obliged, under Exhibit B, to accept that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On this point, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 8 sites in parcel sortation, Keystone takes this obligation at site level rather than centrally under the Master Subscription Agreement. Keystone has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

The Provider warrants to Keystone that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As agreed, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. Where Keystone has raised a query the Provider has answered by reference to Article 20 (Notices), and the exchange is on the contract file.

As between Keystone and the Provider, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. By way of qualification, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 8 sites, Keystone applies the Master Subscription Agreement at the point of delivery, as parcel sortation practice requires. Notices under Article 6 (Fees and Payment) go to the contracting entity named in the recital and not to any Keystone affiliate that may operate a site.

Nothing in Schedule 3 entitles Keystone to assume that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Per the amendment history, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing

signed by an authorised officer. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. Administration of this obligation for Keystone sits with the account team rather than with central contracts, and Article 3 (Scope of Supply) is where it is evidenced.

Keystone subscription agreement - Schedule 2 - Sites and Operating Patterns

Keystone site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
KEY-S001	Evergreen facility	10	2025-06-07	continuous	Customer furnished	not commenced
KEY-S002	Juniper facility	11	2024-05-23	two shifts	Customer furnished	accepted
KEY-S003	Granite facility	14	2026-08-15	two shifts	Provider furnished	accepted with punch list
KEY-S004	Crestline facility	31	2025-07-02	continuous	shared	pending acceptance
KEY-S005	Dunbar facility	28	2024-03-14	single shift	Customer furnished	accepted
KEY-S006	Keystone facility	7	2025-03-26	two shifts	shared	not commenced
KEY-S007	Larkspur facility	14	2025-03-25	single shift	Customer furnished	not commenced
KEY-S008	Larkspur facility	36	2026-01-01	continuous	Customer furnished	pending acceptance
KEY-S009	Dayton facility	10	2025-11-25	continuous	Provider furnished	accepted
KEY-S010	Juniper facility	38	2026-02-04	continuous	shared	not commenced
KEY-S011	Larkspur facility	14	2024-08-25	continuous	Customer furnished	not commenced
KEY-S012	Juniper facility	30	2025-06-23	two shifts	Customer furnished	accepted with punch list
KEY-S013	Larkspur facility	14	2026-10-07	two shifts	Customer furnished	accepted with punch list
KEY-S014	Granite facility	32	2026-08-21	two shifts	shared	accepted
KEY-S015	Dayton facility	38	2026-12-28	continuous	shared	pending acceptance
KEY-S016	Dunbar facility	29	2026-05-15	single shift	Provider furnished	accepted with punch list
KEY-S017	Keystone facility	17	2026-04-02	single shift	Provider furnished	pending acceptance
KEY-S018	Fathom facility	12	2026-02-15	two shifts	Provider furnished	not commenced
KEY-S019	Harborline facility	26	2024-01-20	single shift	Customer furnished	pending acceptance
KEY-S020	Fathom facility	19	2025-09-08	two shifts	Provider furnished	accepted
KEY-S021	Meridian facility	8	2025-08-12	two shifts	Provider furnished	pending acceptance
KEY-S022	Fathom facility	22	2026-10-18	two shifts	Customer furnished	accepted with punch list
KEY-S023	Harborline facility	18	2024-09-06	continuous	Customer furnished	pending acceptance
KEY-S024	Evergreen facility	17	2025-11-18	single shift	shared	not commenced
KEY-S025	Juniper facility	36	2024-10-19	single shift	Provider furnished	not commenced
KEY-S026	Granite facility	26	2024-09-16	two shifts	Customer furnished	accepted
KEY-S027	Larkspur facility	6	2026-12-16	two shifts	shared	accepted
KEY-S028	Granite facility	31	2026-08-02	continuous	Provider furnished	accepted with punch list
KEY-S029	Granite facility	8	2024-11-12	single shift	shared	not commenced
KEY-S030	Larkspur facility	6	2025-07-13	two shifts	shared	pending acceptance
KEY-S031	Mesa facility	21	2025-09-20	two shifts	Provider furnished	pending acceptance
KEY-S032	Fathom facility	18	2024-04-07	single shift	shared	accepted
KEY-S033	Evergreen facility	31	2025-05-15	single shift	Provider furnished	accepted with punch list
KEY-S034	Harborline facility	31	2026-05-13	continuous	shared	accepted with punch list
KEY-S035	Dunbar facility	19	2026-07-03	single shift	shared	accepted with

Keystone site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
						punch list
KEY-S036	Granite facility	35	2026-12-10	two shifts	Provider furnished	pending acceptance
KEY-S037	Dunbar facility	9	2025-04-17	single shift	Customer furnished	accepted with punch list
KEY-S038	Evergreen facility	18	2025-06-04	single shift	Provider furnished	pending acceptance
KEY-S039	Keystone facility	33	2025-10-03	continuous	Customer furnished	pending acceptance
KEY-S040	Harborline facility	36	2025-03-02	two shifts	Customer furnished	accepted
KEY-S041	Harborline facility	12	2024-09-09	two shifts	Provider furnished	not commenced
KEY-S042	Keystone facility	28	2024-04-11	single shift	Customer furnished	pending acceptance
KEY-S043	Meridian facility	5	2024-09-27	two shifts	shared	accepted
KEY-S044	Keystone facility	11	2026-12-27	two shifts	shared	accepted
KEY-S045	Juniper facility	28	2026-02-28	single shift	Customer furnished	not commenced
KEY-S046	Evergreen facility	9	2025-08-01	single shift	shared	accepted
KEY-S047	Larkspur facility	34	2026-09-17	single shift	Provider furnished	not commenced
KEY-S048	Meridian facility	26	2026-05-28	two shifts	Customer furnished	pending acceptance
KEY-S049	Evergreen facility	24	2026-06-18	two shifts	Customer furnished	pending acceptance
KEY-S050	Granite facility	14	2024-05-13	continuous	shared	accepted with punch list
KEY-S051	Fathom facility	35	2026-11-22	single shift	Provider furnished	pending acceptance
KEY-S052	Granite facility	16	2026-04-26	single shift	Customer furnished	not commenced
KEY-S053	Crestline facility	23	2026-07-15	single shift	Provider furnished	accepted
KEY-S054	Harborline facility	20	2026-06-09	continuous	Provider furnished	pending acceptance
KEY-S055	Dunbar facility	38	2025-02-20	continuous	Provider furnished	accepted
KEY-S056	Mesa facility	23	2025-06-22	single shift	Customer furnished	not commenced
KEY-S057	Larkspur facility	23	2024-01-04	two shifts	Customer furnished	pending acceptance
KEY-S058	Granite facility	7	2026-01-22	continuous	Provider furnished	accepted with punch list
KEY-S059	Meridian facility	26	2025-01-17	continuous	shared	pending acceptance
KEY-S060	Dayton facility	31	2025-11-21	continuous	Customer furnished	not commenced
KEY-S061	Dayton facility	35	2025-06-23	continuous	shared	not commenced
KEY-S062	Fathom facility	33	2026-08-15	single shift	Customer furnished	accepted with punch list
KEY-S063	Granite facility	27	2025-12-27	single shift	Customer furnished	accepted with punch list
KEY-S064	Granite facility	25	2024-10-14	single shift	shared	accepted with punch list
KEY-S065	Dunbar facility	15	2024-11-14	two shifts	Provider furnished	accepted
KEY-S066	Granite facility	10	2026-09-20	continuous	Customer furnished	not commenced
KEY-S067	Juniper facility	34	2026-05-26	two shifts	Customer furnished	accepted
KEY-S068	Harborline facility	37	2025-12-16	two shifts	shared	not commenced
KEY-S069	Meridian facility	24	2025-09-14	two shifts	Provider furnished	pending acceptance
KEY-S070	Fathom facility	32	2025-01-25	single shift	shared	accepted
KEY-S071	Dayton facility	24	2025-05-15	two shifts	shared	accepted
KEY-S072	Keystone facility	33	2026-06-20	continuous	shared	accepted with punch list

Keystone site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
KEY-S073	Dunbar facility	32	2025-10-15	continuous	shared	not commenced
KEY-S074	Larkspur facility	12	2024-08-20	continuous	Customer furnished	not commenced
KEY-S075	Harborline facility	19	2025-12-06	single shift	shared	accepted
KEY-S076	Keystone facility	28	2025-11-11	single shift	Provider furnished	accepted with punch list
KEY-S077	Keystone facility	11	2024-04-04	single shift	Provider furnished	accepted with punch list
KEY-S078	Larkspur facility	11	2026-08-06	two shifts	shared	pending acceptance
KEY-S079	Harborline facility	13	2025-05-28	two shifts	shared	accepted with punch list
KEY-S080	Fathom facility	19	2025-12-18	two shifts	Provider furnished	pending acceptance
KEY-S081	Juniper facility	22	2025-02-10	continuous	shared	pending acceptance
KEY-S082	Crestline facility	11	2024-07-02	continuous	Provider furnished	accepted
KEY-S083	Evergreen facility	27	2024-02-27	single shift	shared	not commenced
KEY-S084	Keystone facility	30	2026-04-21	continuous	Provider furnished	pending acceptance

7. Data, intellectual property and licences

Keystone may require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the negotiated text, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In parcel sortation the burden of this sits with operations, and Keystone discharges it across 8 sites under the Master Subscription Agreement. The Keystone relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

Neither Keystone nor the Provider may treat Article 21 (Governing Law and Disputes) as permitting the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the operative wording, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. Administration of this obligation for Keystone sits with the account team rather than with central contracts, and Article 12 (Intellectual Property) is where it is evidenced.

Keystone may require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 8 sites, Keystone applies the Master Subscription Agreement at the point of delivery, as parcel sortation practice requires. The Keystone file records the position as at the last amendment, and Article 9 (Customer Obligations) is the reference a reviewer should cite when raising it.

Keystone pays the fees under Exhibit D in consideration of the Provider's undertaking that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Intended effect: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Pennsylvania is where Keystone runs parcel sortation operations across 8 sites, and the Master Subscription Agreement follows that footprint. The Keystone file records the position as at the last amendment, and Article 5 (Delivery and Title) is the reference a reviewer should cite when raising it.

8. Indemnities and limitation of liability

Keystone and the Provider agree that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Master Subscription Agreement reaches each of Keystone's 8 sites separately, which is how a parcel sortation operator in

Pennsylvania administers it. Nothing in the Keystone negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

Keystone and the Provider agree that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the negotiated text, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Keystone runs 8 sites from Pennsylvania in parcel sortation, so the Master Subscription Agreement is administered locally and this clause is applied per site. The Keystone file records the position as at the last amendment, and Article 4 (Orders and Quantities) is the reference a reviewer should cite when raising it.

Keystone acknowledges that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By way of qualification, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Keystone has 8 sites, and the Master Subscription Agreement treats each as a separate delivery point. The Keystone file records the position as at the last amendment, and Article 20 (Notices) is the reference a reviewer should cite when raising it.

Nothing in Exhibit D entitles Keystone to assume that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Textually, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. 8 sites in Pennsylvania means Keystone applies the Master Subscription Agreement through its regional operations team rather than through head office. Where Keystone has raised a query the Provider has answered by reference to Article 20 (Notices), and the exchange is on the contract file.

Keystone subscription agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Keystone milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
KEY-M001	pilot acceptance	2026-10	1	facility readiness	$267,624	no payment attached
KEY-M002	integration test passed	2026-03	16	facility readiness	$184,008	invoiceable on acceptance
KEY-M003	warranty commencement	2026-03	33	no delay	$172,335	invoiceable on acceptance
KEY-M004	units delivered	2025-05	13	Customer IT dependency	$55,316	invoiceable on certification
KEY-M005	units delivered	2026-01	15	labour agreement	$74,657	invoiceable on certification
KEY-M006	warranty commencement	2026-07	28	network provisioning	$231,572	invoiceable on acceptance
KEY-M007	network readiness certified	2026-01	28	seasonal freeze	$193,234	no payment attached
KEY-M008	network readiness certified	2026-08	8	labour agreement	$38,394	invoiceable on acceptance
KEY-M009	steady-state handover	2025-01	3	no delay	$91,097	invoiceable on acceptance
KEY-M010	full acceptance	2026-02	31	labour agreement	$79,651	no payment attached
KEY-M011	integration test passed	2026-11	13	network provisioning	$47,002	no payment attached
KEY-M012	site survey complete	2026-03	22	seasonal freeze	$99,929	invoiceable on acceptance
KEY-M013	integration test passed	2024-03	6	network provisioning	$144,364	invoiceable on certification
KEY-M014	full acceptance	2024-07	20	facility readiness	$91,615	invoiceable on acceptance
KEY-M015	units delivered	2025-08	24	no delay	$170,870	invoiceable on certification
KEY-M016	units delivered	2025-11	21	Customer IT dependency	$90,510	invoiceable on acceptance
KEY-M017	units delivered	2026-12	16	no delay	$100,575	no payment attached
KEY-M018	site survey complete	2024-09	33	seasonal freeze	$70,790	invoiceable on acceptance

Keystone milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
KEY-M019	steady-state handover	2026-07	28	facility readiness	$226,322	invoiceable on acceptance
KEY-M020	network readiness certified	2025-05	19	seasonal freeze	$191,205	no payment attached
KEY-M021	network readiness certified	2025-12	13	labour agreement	$65,166	invoiceable on acceptance
KEY-M022	integration test passed	2026-07	9	network provisioning	$18,319	invoiceable on acceptance
KEY-M023	network readiness certified	2026-12	8	Customer IT dependency	$238,931	invoiceable on acceptance
KEY-M024	site survey complete	2025-08	24	facility readiness	$251,825	invoiceable on certification
KEY-M025	integration test passed	2025-10	12	labour agreement	$75,315	no payment attached
KEY-M026	units delivered	2026-05	12	seasonal freeze	$164,276	invoiceable on acceptance
KEY-M027	steady-state handover	2026-11	17	Customer IT dependency	$117,418	invoiceable on certification
KEY-M028	units delivered	2025-07	7	Customer IT dependency	$70,084	no payment attached
KEY-M029	warranty commencement	2025-04	17	facility readiness	$105,480	invoiceable on certification
KEY-M030	integration test passed	2026-09	13	facility readiness	$49,976	no payment attached
KEY-M031	steady-state handover	2025-02	6	seasonal freeze	$230,269	invoiceable on acceptance
KEY-M032	site survey complete	2026-04	10	seasonal freeze	$255,961	invoiceable on certification
KEY-M033	network readiness certified	2026-12	6	labour agreement	$128,474	no payment attached
KEY-M034	full acceptance	2024-11	17	facility readiness	$106,694	invoiceable on certification
KEY-M035	site survey complete	2024-04	13	no delay	$173,622	no payment attached
KEY-M036	units delivered	2026-07	24	network provisioning	$267,626	invoiceable on acceptance
KEY-M037	pilot acceptance	2025-08	8	no delay	$130,429	no payment attached
KEY-M038	site survey complete	2024-04	14	network provisioning	$185,786	invoiceable on certification
KEY-M039	integration test passed	2026-12	13	no delay	$260,089	invoiceable on certification
KEY-M040	steady-state handover	2024-07	23	no delay	$72,924	no payment attached
KEY-M041	units delivered	2025-05	18	network provisioning	$268,747	invoiceable on acceptance
KEY-M042	network readiness certified	2024-11	32	Customer IT dependency	$212,577	invoiceable on acceptance
KEY-M043	full acceptance	2024-09	4	labour agreement	$58,945	invoiceable on acceptance
KEY-M044	pilot acceptance	2026-08	31	seasonal freeze	$123,194	invoiceable on acceptance
KEY-M045	integration test passed	2026-01	21	facility readiness	$32,826	no payment attached
KEY-M046	network readiness certified	2025-10	1	seasonal freeze	$135,425	no payment attached
KEY-M047	units delivered	2025-03	29	no delay	$91,600	invoiceable on certification
KEY-M048	steady-state handover	2024-06	29	Customer IT dependency	$77,130	invoiceable on certification
KEY-M049	warranty commencement	2025-06	31	no delay	$258,424	invoiceable on acceptance
KEY-M050	units delivered	2025-10	3	labour agreement	$241,074	invoiceable on acceptance
KEY-M051	site survey complete	2024-10	20	no delay	$196,674	no payment attached
KEY-M052	integration test passed	2024-05	13	no delay	$202,374	invoiceable on acceptance

Keystone milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
KEY-M053	full acceptance	2025-04	9	seasonal freeze	$240,349	invoiceable on acceptance
KEY-M054	network readiness certified	2024-08	5	no delay	$146,406	invoiceable on certification
KEY-M055	pilot acceptance	2024-01	8	seasonal freeze	$54,201	invoiceable on acceptance
KEY-M056	network readiness certified	2024-06	19	no delay	$40,006	no payment attached
KEY-M057	site survey complete	2025-05	on plan	seasonal freeze	$113,008	no payment attached
KEY-M058	site survey complete	2024-12	1	labour agreement	$167,487	invoiceable on certification
KEY-M059	warranty commencement	2024-02	25	facility readiness	$223,306	no payment attached
KEY-M060	steady-state handover	2024-02	31	network provisioning	$126,258	invoiceable on certification
KEY-M061	units delivered	2026-08	20	seasonal freeze	$108,501	invoiceable on acceptance
KEY-M062	warranty commencement	2026-11	9	labour agreement	$208,324	no payment attached
KEY-M063	steady-state handover	2025-08	22	network provisioning	$98,782	invoiceable on certification
KEY-M064	network readiness certified	2024-05	33	facility readiness	$65,733	no payment attached
KEY-M065	warranty commencement	2026-07	13	facility readiness	$144,921	invoiceable on acceptance
KEY-M066	warranty commencement	2025-12	7	no delay	$173,382	invoiceable on acceptance
KEY-M067	integration test passed	2025-10	8	Customer IT dependency	$135,434	invoiceable on acceptance
KEY-M068	site survey complete	2024-11	on plan	facility readiness	$188,608	invoiceable on certification
KEY-M069	pilot acceptance	2026-12	26	network provisioning	$175,952	no payment attached
KEY-M070	units delivered	2024-10	7	network provisioning	$22,722	invoiceable on certification
KEY-M071	full acceptance	2026-10	20	facility readiness	$52,649	invoiceable on acceptance
KEY-M072	integration test passed	2025-01	29	labour agreement	$137,630	invoiceable on acceptance
KEY-M073	network readiness certified	2026-09	8	Customer IT dependency	$270,590	no payment attached
KEY-M074	pilot acceptance	2026-03	17	no delay	$45,300	no payment attached
KEY-M075	steady-state handover	2025-01	1	facility readiness	$33,848	no payment attached
KEY-M076	site survey complete	2025-10	11	facility readiness	$132,824	invoiceable on acceptance
KEY-M077	site survey complete	2024-09	14	network provisioning	$239,577	invoiceable on acceptance
KEY-M078	full acceptance	2025-10	23	no delay	$269,009	no payment attached
KEY-M079	steady-state handover	2025-08	on plan	labour agreement	$17,349	no payment attached
KEY-M080	warranty commencement	2026-11	10	facility readiness	$15,843	invoiceable on acceptance
KEY-M081	steady-state handover	2024-09	10	network provisioning	$255,944	invoiceable on certification
KEY-M082	full acceptance	2025-05	16	labour agreement	$199,211	invoiceable on certification
KEY-M083	steady-state handover	2025-12	on plan	seasonal freeze	$185,200	invoiceable on acceptance
KEY-M084	steady-state handover	2024-03	17	seasonal freeze	$73,404	invoiceable on certification
KEY-M085	pilot acceptance	2026-04	11	seasonal freeze	$252,341	invoiceable on certification
KEY-M086	warranty commencement	2025-03	19	labour agreement	$222,125	no payment attached

9. Term, termination and transition

The Provider has undertaken to Keystone that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As agreed, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 8 sites in parcel sortation, Keystone takes this obligation at site level rather than centrally under the Master Subscription Agreement. The obligation as it applies to Keystone was tightened at signature, and Article 2 (Definitions) carries the negotiated wording rather than the standard wording.

Keystone Parcel Network Inc. has notified the Provider that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Per the amendment history, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Pennsylvania is where Keystone runs parcel sortation operations across 8 sites, and the Master Subscription Agreement follows that footprint. Keystone has taken the point up once since signature; the correspondence is filed against Article 18 (Assignment) and did not result in an amendment.

The Provider warrants to Keystone that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On the mechanics, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Keystone runs 8 sites from Pennsylvania in parcel sortation, so the Master Subscription Agreement is administered locally and this clause is applied per site. Nothing in the Keystone negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

Keystone may require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. By design, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Keystone, a parcel sortation operator running 8 sites out of Pennsylvania, the point matters because the Master Subscription Agreement is administered site by site. Keystone has taken the point up once since signature; the correspondence is filed against Article 10 (Change Control) and did not result in an amendment.

10. Assignment, notices and general

Article 6.7 of this instrument records a departure from the Provider's standard position: the Provider warrants that the fees are no less favourable than those offered to any customer of comparable volume, and will rebate the difference on the Customer's written request. The provision was negotiated at signature and is not qualified elsewhere in the Master Subscription Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 6.7 as governing.

For the purposes of the Master Subscription Agreement, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Keystone is a Pennsylvania parcel sortation business with 8 sites, the Master Subscription Agreement devolves this to the site manager. Where Keystone has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

Keystone bears the risk that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Materially, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Pennsylvania is where Keystone runs parcel sortation operations across 8 sites, and the Master Subscription Agreement follows that footprint. The obligation as it applies to Keystone was tightened at signature, and Article 16 (Term and Termination) carries the negotiated wording rather than the standard wording.

For the purposes of the Master Subscription Agreement, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Operationally, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 8 sites in parcel sortation, Keystone takes this obligation at site level rather than centrally

under the Master Subscription Agreement. Nothing in the Keystone negotiation history qualifies Article 4 (Orders and Quantities), and a reviewer should not read the pre-signature drafts as doing so.

The parties have recorded in Exhibit D that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Materially, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In parcel sortation the burden of this sits with operations, and Keystone discharges it across 8 sites under the Master Subscription Agreement. Nothing in the Keystone negotiation history qualifies Article 2 (Definitions), and a reviewer should not read the pre-signature drafts as doing so.